

		Plaintiff shall give notice.
59	<i>Rager vs. Tangerini</i>	Respondent Nathaniel Tangerini's Motion to Compel Arbitration is GRANTED under CCP §1281.2. Respondent has met his burden of alleging the existence of a written agreement to arbitrate. This action is stayed pending arbitration under CCP §1281.4. Petitioner did not meet his burden proving that respondent waived his right to arbitrate [CCP §1281.2(a)], that grounds exist for rescission of the agreement [CCP §1281.2 (b)], or that there are third-party actions arising out of the same transactions or series of transactions as this action and a possibility of conflicting rulings on a common issue of law or fact. [CCP §1281. 2(c)] Without proof of any of these grounds, the Court "shall" send this matter to arbitration. The issues to be decided on a Motion to Compel Arbitration are narrow: is there an agreement to arbitrate and are there defenses to the enforcement of that agreement. As such, any other issue is not properly before the Court. Therefore, the Court does not consider requests to appoint a referee under CCP §639 or a motion for attorney's fees based upon the Arbitration Agreement. As to the latter, with the granting of this Motion, an award of attorneys' fees is within the jurisdiction of the arbitrator, and this Court may not act upon it. Moving party shall give notice.
60	<i>Shah vs. Gordon</i>	The unopposed motion by Defendant Kimberly Gurden, erroneously sued as Kimberly Gordon ("Defendant") for an order compelling Plaintiff

Minal Shah (“Plaintiff”) to serve initial and verified responses to Special Interrogatories, Set One is GRANTED.

A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, Plaintiff waived “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).)

All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (*See Leach v. Superior Court (Markum)* (1980) 111 Cal.App.3d 902, 905-906.)

Defendant showed Defendant served the special interrogatories at issue by mail on Plaintiff on January 28, 2026, that Plaintiff did not request any extension, and Plaintiff has not served any responses. (Macdonald Decl., ¶¶ 3-5 and 10, Exhibit A.) Although not required, Defendant attempted to informally resolve the discovery issue, but Plaintiff did not respond. (*Id.*, ¶ 6, Exhibit B.)

Accordingly, Defendant’s unopposed motion is granted. Plaintiff shall serve verified Code-compliant responses without objection by August 21, 2026.

		The Court notes the notice and moving papers, as well as the discovery at issue, were served by mail and email on Plaintiff. Pursuant to CRC Rule 2.251(c)(3)(B), Plaintiff is self-represented and is “to be served by non-electronic methods unless [Plaintiff] affirmatively consent[s] to electronic service.” There is no showing Plaintiff affirmatively consented to electronic service. The Court reminds the parties that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, Rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) The fact that Plaintiff is a self-represented litigant does not relieve him of the requirements, law, and procedures applied to all parties who appear in this court. Self-represented litigants are “held to the same standards as attorneys.” (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543.) Defendant shall give notice.
61	<i>Viveros v. Aaron Transport, Inc.</i>	Defendant Aaron Stogden Garcia dba Aaron’s Transport’s unopposed motion to compel the